ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	125th Commission Meeting
DATE:	26 April, 2023
TIME:	02:00 PM
VENUE:	Third Floor Meeting Room

#	AGENDA & DISCUSSIONS	DECISIONS
1	Present IEC for IVS, MPSCC & AD – Consultant & ED *Three draft audio-video materials prepared were reviewed by the Commission.*	**The Commission approved the IEC for Asset Declaration and Model Public Service Code of Conduct (MPSCC). The Commission specifically directed ED to immediately broadcast the AD material to facilitate and guide the declarants.** **On the IEC for IVS, the Commission directed ED to incorporate aspects of restorative justice on records related to administrative sanctions to highlight that the type of IVR is subject to change considering individual's good or repeated conduct. Further, the Commission directed to revise the color codes and also look into creatively presenting the benefits of such tool.** **Since the narration of all the three IEC materials are in Dzongkha, the Commission directed ED to study the need as well as estimated costs of recording all the narrative in English.**
2	Regular HR update – HRS *The HRS apprised on the selection results of three Regional Directors with all three rated 'Exceeding Expectations' by the five panelists. It was apprised that the place of posting shall be in line with initial appointment by the Commission.*	**Noted.**

3	Propose maintenance of seized property for case 09/2016 – EMD, DoPS *As per the OAG's letter, EMD apprised on release of Lam Tshering Wangdi's properties. To this, EMD proposed to repair and hand over vehicle to the individual concerned and the costs of about Nu. 30,000/- for the maintenance was proposed to be met from the Escrow account.* *Further, EMD sought advice on forwarding of other seized vehicles related to the case to the OAG.*	**The Commission directed EMD to release Lam's vehicle after its required maintenance. The expenditure for vehicle maintenance was directed to be meet from an advance from Endowment Fund. At the same time, EMD to propose the required budget to the Finance Committee to seek budget incorporation from MoF.** **Further, since the judgment related to Anim Damcho's case is still pending, the Commission directed to EMD to forward all vehicle to the OAG.**
4	Present proposed revisions in the Debarment Rules – LD *The proposed amendments in the Debarment Rules, reviewed by the LD, was apprised to the Commission.*	**The Commission directed the following on the proposed amendments:** - **Remove the Section specifying the tenure of the committee member;** - **Endorsed the proposed 'Debarment facilitation committee', its roles & responsibilities, and member composition. However, directed LD to change the name of the committee in consultation with Procurement Management and Development Division.** - **The required quorum for the Debarment Committee to be a minimum of three but with at least one representative from the private sector.** - **To be specific on the number of days as five working days, as against the proposed 'reasonable time' for the Secretariat to notify the public agency concerned;** - **Revisit proposed deletion of Section 45 of the existing Rules given the need to uphold confidentiality by putting necessary measures.** **Further, LD was directed to consult with CMD of DoPS and review other Commission's directives related revision of the Debarment Rules.**
5	Present proposal on painting and maintenance of the office – SS *As a follow-up of the 10th QSM and 124th*	**Given the resource constraints, the Commission directed SS to carry out painting of few selected areas, based on the conditions of ripped walls (including**

	Commission meeting, the SS apprised on the budget limitations to undertake painting of the office building and maintenance works related to enhancement of documentation and the interrogation rooms.	**the stairways, third floor, ground floor), by encouraging volunteers.** **Further, directed SS to carry out the maintenance works related to creation of additional space for documentation room by optimally using the space in the basement. In this regard, directed SS to appropriately recycle and dispose the piled publications. On the disposal of seized vehicle to the OAG, which were decided to be forwarded, the Commission decided to undertake it cautiously recognizing the OAG's challenges and limitations.**
6	Apprise on request from corruptionrisk.org to participate in Transparency Index assessment- PPD *PPD apprised that corruptionrisk.org as an institution has been set up to measure level of corruption based on indicators and facts, not necessarily limiting to perceptions. This was developed by European Research Centre for Anti-Corruption and State-Building. One of the three indexes of corruption risk forecast is Transparency Index for which the ACC has been requested to furnish information and documents by 3rd of May 2023.*	**Given the time limitations in compiling and consolidating information related to initiatives of various government institutions, amidst prior engagements, the Commission decided to regret its participation. However, the Commission decided to revisit the same in the following year.**
7	Any other: - *Invitation for 14th International Conference of Information Commissioners (ICIC) – PPD*	**As the Conference is not relevant to ACC and its functions, the Commission regretted participation in the Conference.**
	- *Follow-up on the Commission decisions.*	**The Commission directed PPD to revisit all the decisions of the Commission, in particular those that are pending since the 1st Commission meeting.** **Directed PPD to revive the Commission's meeting with the staff in smaller groups to be convened on Fridays.**

Commissioner **Commissioner** **Chairperson**

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File Name	Draft Minutes- 125 Commission Meeting. doc.pdf
Document ID	19ad9b8f8ead456ca6c62233aaf3b712
Fingerprint	046f6e0b40d0363cd32168823188dc8d
Status	Completed

Document History

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